

Court No. - 3

Case :- WRIT - C No. - 37271 of 2023

Petitioner :- Manoj Saxena

Respondent :- Managing Director Paschimanchal Electricity And
2 Others

Counsel for Petitioner :- Devendra Pratap Yadav

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

No one has appeared on behalf of the petitioner even in the revised call. Sri Pranjal Mehrotra, learned counsel for the respondents is present.

List this case in ordinary course.

Order Date :- 17.11.2023

M.S. Ansari

(Manoj Bajaj, J.) (Siddhartha Varma, J.)

Court No. - 3

Case :- WRIT - C No. - 37271 of 2023

Petitioner :- Manoj Saxena

Respondent :- Managing Director Paschimanchal Electricity
And 2 Others

Counsel for Petitioner :- Devendra Pratap Yadav

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Siddhartha Varma,J.

Hon'ble Shekhar B. Saraf,J.

List this case on 20.12.2023.

Order Date :- 2.12.2023

M.S. Ansari

(Shekhar B. Saraf, J.) (Siddhartha Varma, J.)

Court No. - 21

Case :- WRIT - C No. - 37271 of 2023

Petitioner :- Manoj Saxena

Respondent :- Managing Director Paschimanchal Electricity And
2 Others

Counsel for Petitioner :- Devendra Pratap Yadav

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. The petitioner has challenged the notice of provisional assessment dated 22.12.2022 issued by respondent no.2 in a case of theft of electricity.
2. Learned counsel for the petitioner submits that the petitioner has made representation against the proposed assessment and seeks a direction to the respondent-Authority to decide the same.
3. Shri Pranjal Mehrotra, learned counsel for respondent-Electricity Department very fairly states that in case final assessment order has not been passed so far, respondent no.2 will examine the objection and will take decision in the matter.
4. Accordingly, the petition is **disposed of** by providing that in case final assessment order has not been passed so far, respondent no.2 will decide the objection by following the procedure prescribed under the Electricity Supply Code, 2005 within a period of eight weeks from the date of communication of the instant order.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 27.2.2024

Ankit.